

**JUSTIFICATION REVIEW DOCUMENT
OTHER THAN FULL AND OPEN COMPETITION**

PROJECT/EQUIPMENT: W912BU20D0002 Borton-Lawson Capacity Increase

CONTROL NO: CENAP-22-0072

AUTHORITY: 10 U.S.C. § 3204(a)(1)

AMOUNT: \$450,000.00

PREPARED BY: CONTRACT SPECIALIST	NAME: [REDACTED] PHONE: [REDACTED]	DATE: 07 April 2025
CONTRACTING OFFICER	NAME: [REDACTED] PHONE: [REDACTED]	DATE: 07 April 2025
TECHNICAL	NAME: [REDACTED] PHONE: [REDACTED]	DATE: 07 April 2025
REQUIREMENTS	NAME: [REDACTED] PHONE: [REDACTED]	DATE: 07 April 2025

SIGNATURES ARE REQUIRED BELOW:

DISTRICT SMALL BUSINESS SPECIALIST	SIG: [REDACTED] Digitally signed by [REDACTED] [REDACTED] Date: 2025.04.18 08:59:54 -04'00' NAME: [REDACTED]	DATE: 07 April 2025 PHONE: [REDACTED]
PROJECT MANAGER	SIGNATURE: [REDACTED] Digitally signed by [REDACTED] R. [REDACTED] Date: 2025.04.07 16:29:45 -04'00' NAME: [REDACTED]	DATE: 07 April 2025 PHONE: [REDACTED]
DISTRICT COUNSEL	SIGNATURE: [REDACTED] Digitally signed by [REDACTED] [REDACTED] Date: 2025.04.17 14:42:55 -04'00' NAME: [REDACTED]	DATE: 07 April 2025 PHONE: [REDACTED]
DISTRICT CONTRACTING OFFICER	SIGNATURE: [REDACTED] Digitally signed by [REDACTED] [REDACTED] Date: 2025.04.20 10:34:33 -04'00' NAME: [REDACTED]	DATE: 07 April 2025 PHONE: [REDACTED]

I have reviewed this J&A and find the justification adequate to support other than full and open competition.

BUSINESS OVERSIGHT BRANCH	SIGNATURE: [REDACTED] Digitally signed by [REDACTED] [REDACTED] Date: 2025.04.18 14:39:11 -04'00' NAME: [REDACTED]	DATE: 07 April 2025 PHONE: [REDACTED]
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Justification and Approval for Other Than Full and Open Competition

1. Contracting Activity: U.S. Army Corps of Engineers, Philadelphia District (USACE- NAP), Contract Division, 1650 Arch Street, Philadelphia, PA 19103-2004.

2. Description of Action: Approval is being requested to increase the capacity of W912BU-20-D-0002 by \$4,000,000 to a total capacity of \$8,000,000 to ensure NAP can support Tobyhanna Army Depot programs without a break in service. The existing Single Award Task Order Contract (SATOC) was awarded to Borton-Lawson (aka: BL) through Full Open Competition under the Brooks Act via Solicitation W912BU-17-R-0021. 89% of the SATOC's capacity has been used to date (\$4.43M). Three of the Task Orders (TO) under the SATOC require modifications, which are within the scope of the original task orders and the base contract, with values that exceed available capacity. The remaining balance after the three previously noted TOs are executed is to hold approximately \$3,567,000 in capacity for unanticipated contingency to cover if any of the AE proposals come in higher than the IGE.

TO W912BU22F0093 Tobyhanna Building 5 Bays 5 and 6 Renovation Design, awarded 20 September 2022 in the amount of \$831,600.91, requires modification to increase the TO value by an estimated amount of \$1,000,000. The renovation of building 5 bays 5 and 6 TO that was awarded was limited due to available funding at the time. TYAD has received additional funding which allows for the following work, that is within the scope of the original task order, to be requested, see table below to show the relationship between the original scope and the modified scope. The design work is currently at 65% complete.

Original Scope	Modified Scope
Perform hazardous materials evaluation and testing of work area.	Not Included
Develop removal plans showing limits of demolition work. Remove all abandoned utilities within the building's renovated area.	Develop removal plans showing limits of items and equipment to be relocated from multiple areas.
Develop interior finish schedules and finish boards.	Develop interior finish schedules and finish boards for all new spaces.
Design HVAC systems to support the office areas, open bay mission areas. New HVAC systems and energy requirements to be coordinated with the current ESPC contractor.	Design HVAC systems to support the additional spaces , office areas, and other relocated mission area workflows. New HVAC systems and energy requirements to be coordinated with the current ESPC contractor.
Design power distribution system in the area of the renovation.	Design power distribution system in the areas for new and relocated equipment
Design new lighting system (including emergency lighting) to support entire building 15 facility, interior and exterior.	Design new lighting system (including emergency lighting) to support the relocated space configurations
Design telephone and data distribution infrastructure systems in coordination with the TYAD Information Management Department.	Design telephone and data distribution infrastructure systems in coordination with the TYAD Information Management Department for the relocated spaces.
Expand existing, or design a new fire alarm system in the areas of the renovation.	Expand existing fire alarm system in the areas of the relocated workflows.
Renovate and extend as necessary the existing sprinkler system to support the entire facility.	Provide new sprinkler system to support the entire facility, not including the main riser

Original Scope	Modified Scope
Modifications shall include all required architectural, structural, mechanical, electrical, plumbing, fire protection and other related discipline changes.	Modifications shall include all required architectural, structural, mechanical, electrical, plumbing, fire protection and other related discipline changes. <i>The entire design and construction package shall follow the Tobyhanna Installation Design Guide and Specifications. This also includes appendixes to the guide.</i>
Research existing bay crane systems and if need still exists for these systems or if new crane systems should be installed.	Not Included
Research existing bay crane systems and if need still exists for these systems or if new crane systems should be installed.	Not Included
Entire design and construction package shall follow the Tobyhanna Installation Design Guide and Specifications. This also includes appendixes to the guide.	<i>Modifications shall include all required architectural, structural, mechanical, electrical, plumbing, fire protection and other related discipline changes.</i> The entire design and construction package shall follow the Tobyhanna Installation Design Guide and Specifications. This also includes appendixes to the guide.

TO W912BU22F0090 Tobyhanna Building 15 Renovation Design, awarded 28 September 2022 in the amount of \$386,933.18, requires modification to increase the TO value by an estimated amount of \$[REDACTED]. The building 15 Design TO that was awarded was limited due to available funding at the time. TYAD has received additional funding which allows for the following work, that is within the scope of the original task order, to be requested, see table below to show the relationship between the original scope and the modified scope. The design work is currently at 65% complete.

Original Scope	Modified Scope
Not Included	Provide design services for a new high bay addition described above.
Conduct interviews with end user, MMB Planning, Garrison Planning and Engineering departments and perform space planning.	Conduct <i>additional</i> interviews with end user, MMB Planning, Garrison Planning and Engineering departments and perform space planning.
Develop interior finish schedules and finish boards. Not anticipated due to space being open work bay (typical finishes include epoxy floor and white paint).	Develop finish schedules will be required for the finished spaces, such as Safety Offices, Parts Bin, Break Room, Conference Room and other Office spaces
Design power distribution system in the area of the renovation where necessary.	Design <i>additional</i> power distribution system in the area of the renovation where necessary.
Design telephone and data distribution infrastructure systems in coordination with the TYAD Information Management Department, where necessary.	Design <i>additional</i> telephone and data distribution infrastructure systems in coordination with the TYAD Information Management Department, where necessary.
Renovate and extend as necessary the existing sprinkler system to support the entire facility. Sprinkler system will not be replaced with new as part of this project.	Sprinkler System shall be replaced in its entirety under this scope modification, from the existing riser, which is to remain.
Develop four construction cost estimates through the design and development of the construction documents phases. (35%, 65%, 95% and 100% submissions)	Develop one additional construction cost estimate through the design and development of the construction documents phases. (35% Redesign submissions)
Modifications shall include all required architectural, structural, mechanical, electrical, plumbing, fire protection and other related discipline changes.	Modifications shall include all required architectural, structural, mechanical, electrical, plumbing, fire protection and other related discipline changes. <i>Additional Civil work will required for site utilities.</i>

TO W912BU24F0002 Tobyhanna Building 11 Renovation Design, awarded 25 January 2024 in the amount of \$151,831.49, requires modification to increase the TO value by an estimated amount of \$ [REDACTED]. The building 11 Design TO that was awarded was limited due to available funding at the time. TYAD has received additional funding which allows for the following work, that is within the scope of the original task order, to be requested, see table below to show the relationship between the original scope and the modified scope. The design work is currently at 65% complete.

Original Scope	Modified Scope
Perform building survey to document existing conditions and identify systems that support other areas of the building and must remain in place and accessible.	Perform <i>additional</i> building survey to document existing conditions and identify systems that support other areas of the building and must remain in place and accessible.
Develop basis of design documents illustrating conceptual floor plan and outlining the required modifications associated with each building system.	Develop <i>additional</i> basis of design documents illustrating <i>revised</i> conceptual floor plan and outlining the required modifications associated with each building system.
Provide structural support for architectural features such as new wall penetrations for new windows.	Not Included
Review heating, ventilation, and air conditioning with the end user to identify specific requirements for the different use areas within the additional identified space(s).	Review <i>final</i> heating, ventilation, and air conditioning with the end user to identify specific requirements for the different use areas within the additional identified space(s).
Design telephone and data distribution infrastructure systems in coordination with the TYAD Information Management Department for the new renovations	Design telephone, data distribution and <i>audio/visual</i> infrastructure systems in coordination with the TYAD Information Management Department for the new renovations.
Expand existing fire alarm system in the areas of the renovations.	Expand existing fire alarm system in the areas of the renovations <i>and coordinate with new Fire Protection System.</i>
Extend existing sewer systems to support new restroom all additional plumbing requirements.	Extend existing <i>plumbing</i> systems, including sanitary and water supply, to support new break area sink.
Design adjusted sprinkler system for entire renovation area.	Design new sprinkler system for entire renovation area. <i>Extend from existing 8" sprinkler main approximately 150' from the new system.</i>

3. Description of Supplies/Services: The current SATOC was awarded in the amount of \$5M. The proposed modification will increase the capacity by \$ [REDACTED] which brings the total value of the contract to \$ [REDACTED]. The ordering period for the SATOC is through 26 Jun 2025. An ordering period extension is not included in this modification.

This SATOC provides for Architect-Engineer services to support engineering and design projects for Tobyhanna Army Depot. Work includes providing the Tobyhanna Army Depot with multidiscipline Architecture and Engineering services for planning, design, and construction quality assurance in support of Tobyhanna missions.

Eleven TOs were awarded against this SATOC. Of those, five are still open, and three of those (W912BU22F0093, W912BU22F0090, and W912BU24F0002) require significant modification for which only BL can provide the unique services without incurring undue cost and delay. The open TOs requiring modification are listed below:

TO W912BU22F0093 Tobyhanna Building 5 Bays 5 and 6 Renovation Design, \$831,600.91
AWARD: 20 September 2022 CCD: 15 October 2025

TO W912BU22F0090 Tobyhanna Building 15 Renovation Design, \$386,933.18
AWARD: 28 September 2022 CCD: 15 October 2025

TO W912BU24F0002 Tobyhanna Building 11 Renovation Design, \$151,831.49
AWARD: 25 January 2024 CCD: 07 January 2026

4. Authority Cited: 10 U.S.C. § 3204(a)(I), Only One Responsible Source and No Other Supplies or Services Will Satisfy Agency Requirements, as implemented by FAR 6.302-l(b)(1)(ii).

5. Reason for Authority Cited: The existing contract holder (BL) is the only source that can provide continued unique services to maintain the overall delivery of TOs W912BU22F0093, W912BU22F0090, and W912BU24F0002 without creating substantial duplication of cost to the government that is not expected to be recovered through competition and will result in unacceptable delays in fulfilling the requirements.

The modifications to TO W912BU22F0093 required additional funding to become available to complete the current and expanded design for Tobyhanna Building 5 Bays 5 and 6 Renovation Design. BL has been working on the design since September 2022 and is currently 65% complete. Significant design efforts have already been completed by the existing AE firm under the current contract, therefore continuing the project with another AE firm would require restarting and/or repeating work that would incur additional costs (estimated to be around \$ [REDACTED] and would have consequential negative scheduling implications for the project. The current AE firm has developed a thorough understanding of the project, goals, and government concerns that a new AE firm could not acquire and incorporate without a significant learning curve. A new AE firm would not update a design already completed without recreating the majority of the work due to professional liability concerns. Scheduling inefficiencies to get a new AE firm to do this work include time to get a new AE contract in place and subsequent task order (18-24 months) and time for the AE to restart/repeat the work to become the new designer of record (6-12 months). In order to prevent project delays with the ongoing design, the design work for the modification needs to start in the next 3 to 6 months.

The modifications to TO W912BU22F0090 required additional funding to become available to complete the current and expanded design for Tobyhanna Building 15 Renovation Design. BL has been working on the design since September 2022 and is currently 65% complete. Significant design efforts have already been completed by the existing AE firm under the current contract, therefore continuing the project with another AE firm would require restarting and/or repeating work that would incur additional costs (estimated to be around \$ [REDACTED]) and would have consequential negative scheduling implications for the project. The current AE firm has developed a thorough understanding of the project, goals, and government concerns that a new AE firm could not acquire and incorporate without a significant learning curve. A new AE firm would not update a design already completed without recreating the majority of the work due to professional liability concerns. Scheduling inefficiencies to get a new AE firm to do this work include time to get a new AE contract in place and subsequent task order (18-24 months) and time for the AE to restart/repeat the work to become the new designer of record (6-12 months). In order to prevent project delays with the ongoing design, the design work for the modification needs to start in the next 3 to 6 months.

The modifications to TO W912BU24F0002 required additional funding to become available to complete the current and expanded design for Tobyhanna Building 11 Renovation Design. BL has been working on the design since January 2024 and is currently 65% complete. Significant design efforts have already been completed by the existing AE firm under the current contract, therefore continuing the project with another AE firm would require restarting and/or repeating work that would incur additional costs (estimated to be \$ [REDACTED]) and would have consequential negative scheduling implications for the project. The current AE firm has developed a thorough understanding of the project, goals, and government concerns that a new AE firm could not acquire and incorporate without a significant learning curve. A new AE firm would not update a design already completed without recreating the majority of the work due to professional liability concerns. Scheduling inefficiencies to get a new AE firm to do this work include time to get a new AE contract in place and subsequent task order (18-24 months) and time

for the AE to restart/repeat the work to become the new designer of record (6-12 months). In order to prevent project delays with the ongoing design, the design work for the modification needs to start in the next 3 to 6 months.

- a. **Justification/Impact:** Major work includes the on-going support of projects on Tobyhanna Army Depot. Task order modifications are required and there is not enough remaining contract capacity, and the impacts would result in substantial duplication of cost and unnecessary delays if the government was required to solicit another A-E contract to complete the work. Much of the work under these task orders are unique, individualized designs for each site and location. Changing the existing design AE firm would require such a significant time that it cannot be easily or efficiently transferred to another contractor since the TOs are all 65% complete. Contract capacity needs to be available for these modifications and future planned modifications.
- b. **Alternatives:** There are no alternatives available to the Government that would provide the services required without additional cost, redesign, and delays while capacity is sought to cover task order modifications.

6. Efforts to Obtain Competition:

- a. **Notice of Intent to Sole Source:** Pursuant to FAR 5.203(a) the notice of a proposed contract action must be published at least 15 days. Notice of intent to issue a J&A was published on March 31, 2025 and closed April 15, 2025. No comments or responses were received. Once approved the J&A will be published on SAM.gov.
- b. **Effective competition:** Full and open competition was used to procure the original contract.

7. Actions to Increase Competition: Sole source is necessary for these Architect Engineer services because BL has developed unique, individualized designs. To solicit another A-E would cause severe consequences to the schedule and cost of the associated work required. Based on the information provided in the above paragraphs, increasing competition for this action is not feasible.

8. Market Research: The existing Single Award Task Order Contract (SATOC) was awarded to Barton-Lawson, (aka: BL) through Full Open Competition under the Brooks Act via Solicitation W912BU-17-R-0021. No additional market research was conducted.

9. Interested Sources: To date, no other sources have expressed an interest in writing. If interested sources respond to the J&A, it will be documented and reviewed by the contracting activity along with the technical team.

10. Other Facts:

Procurement History:

- 1- **W912BU20D0002**
Date Signed: June 26, 2020
POP: June 26, 2020 – June 26, 2025
Contract value: \$5,000,000.00
Competitive status: Full Open Competition

11. Technical Certification

I certify that the supporting data under my cognizance which are included in the justification are accurate and complete to the best of my knowledge and belief.

Name: [REDACTED]

Date: 07 April 2025

Title: AE Negotiator

Signature:

Digitally signed by [REDACTED]
Date: 2025.04.07 13:52:58 -04'00'

12. Requirements Certification:

I certify that the supporting data under my cognizance which are included in the justification are accurate and complete to the best of my knowledge and belief.

Name: [REDACTED]

Date: 07 April 2025

Title: AE Program Coordinator

Signature:

Digitally signed by [REDACTED]
Date: 2025.04.07 16:32:22 -04'00'

13. Fair and Reasonable Price Determination

I hereby determine that the anticipated cost to the Government for this contract action will be fair and reasonable. Proposed prices for the product will be compared to the independent government estimate that will be developed. Certified cost or pricing data will be requested if determined to be necessary.

Name: [REDACTED]

Date: 07 April 2025

Title: Contracting Officer

Signature:

Digitally signed by [REDACTED]
Date: 2025.04.20 10:32:19 -04'00'

14. Contracting Officer Certification

I certify that his justification is accurate and complete to the best of my knowledge and belief.

Name: [REDACTED]

Date: 07 April 2025

Title: Contracting Officer

Signature

Digitally signed by [REDACTED]
Date: 2025.04.20 10:33:03 -04'00'